

5	Nguyen vs. Eli Lilly and Company 30-2023-01335491	<u>Motion to Compel Discovery</u> Defendants Eli Lilly and Company's and Shannon Lynn Chirco's Motion to Compel Plaintiff's Request for Production, Set No. Two is GRANTED. Plaintiff Hue Kim Nguyen is ORDERED to serve full, complete, and verified responses and responsive documents to Defendants' Request for Production of Documents to Plaintiff Hue Kim Nguyen, Set Two, without objections and within 30 days of service of the notice of ruling. Plaintiff Hue Kim Nguyen is ORDERED to pay to Defendants Eli Lilly and Company and Shannon Lynn Chirco sanctions in the amount of \$800 within 30 days of service of the notice of ruling. <u>Pending Motion</u> Defendants Eli Lilly and Company and Shannon Lynn Chirco move to compel responses and responsive documents to Defendants' Request for Production of Documents to Plaintiff Hue Kim Nguyen, Set Two. <u>Standard to Compel Responses to Requests for Production</u> When a party properly propounds requests for production and the party receiving the requests fails to respond, "[t]he party making the demand may move for an order compelling response to the demand." (Code Civ. Proc., § 2031.300, subd. (b).) In addition, when the party receiving the discovery requests fails to respond, the propounding party is not required to file a meet and confer declaration prior to filing its motion to compel, and there is no time limit for the propounding party to file its motion. (<i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 404.) Further, "[t]he party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product" (Code Civ. Proc., § 2031.300, subd. (a).) <u>Requests for Production</u>
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		On May 2, 2024, Defendants served Defendants' Request for Production of Documents to Plaintiff Hue Kim Nguyen, Set Two. (See Decl. of Derek A. Earley in Supp. of Def.s' Mot. to Compel Responses to Request for Production, Set Two (Earley Decl.), ¶ 7, Exh. C.) Plaintiff failed to respond by the due date for discovery responses and Plaintiff's Counsel sent a meet and confer letter on June 26, 2024, and also granted an extension to July 3, 2024, to serve responses. (See <i>id.</i>, ¶¶ 8-9, Exh. B.) As of October 15, 2024, Plaintiff had not provided any responses to Defendants' Request for Production of Documents to Plaintiff Hue Kim Nguyen, Set Two. (See <i>id.</i>, ¶¶ 4, 6.) In addition, Plaintiff has failed to file an opposition or respond to this motion. Thus, Plaintiff has waived any arguments regarding this motion. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see also <i>Wright v. Fireman's Fund Ins. Companies</i> (1992) 11 Cal.App.4th 998, 1011 ["it is clear that a defendant may waive the right to raise an issue on appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion"].) Thus, the court will grant the motion. <u>Sanctions</u> The Civil Procedure Code requires the court to impose monetary sanctions against a party, person, or attorney who unsuccessfully makes or opposes a motion to compel "unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.300, subd. (c).) California Rules of Court rule 3.1348 further provides that "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(a).)
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6	NTHC, LLC. vs. Crest Foods, Inc. 30-2022-01252337	<u>Motion for Determination of Good-Faith Settlement</u> Defendant Davis Wright Tremaine LLP's Motion for Determination of Good Faith Settlement [Code Civ. Proc. § 877.6(a)(1)] is DENIED without prejudice. <u>Pending Motion</u> Defendant Davis Wright Tremaine LLP (Defendant DWT) moves for a determination that the settlement between it and Plaintiff NTHC, LLC was made in good faith, pursuant to Civil Procedure Code section 877.6. <u>Standard for Determination of Good-Faith Settlement</u> Code of Civil Procedure section 877.6 provides in pertinent part: (a)(1) Any party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors, upon giving notice in the manner provided in subdivision (b) of Section 1005. . . .